

26STCP03141 26STCP03141

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-15

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Case Number: 26STCP03141 Hearing Date: September 15, 2026 Dept: 512

HEARING DATE: Tues., September 15, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Chartwell

Escrow, Inc. v. Forman PET. FILED: 08-17-26

CASE NUMBER: 26STCP03141

NOTICE: NO

PROCEEDINGS: PETITION

TO CONFIRM ARBITRATION AWARD

MOVING PARTY: Petitioner

Chartwell Escrow, Inc.

RESP. PARTY: None

PETITION TO CONFIRM ARBITRATION AWARD

(CCP § 1285)

TENTATIVE RULING:

Petitioner Chartwell Escrow, Inc.'s unopposed

Petition to Confirm Arbitration Award is CONTINUED to Monday, October 19, 2026

at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

Moving party is ordered to

give notice.

SERVICE:

☐ Proof of Service

Timely Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§

1013, 1013a) NO

☐ 16/21 Court Days Lapsed

(CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of September 10, 2026 ☐ Late ☒

None

REPLY: None

filed as of September 10, 2026 ☐ Late ☒

None

ANALYSIS:

I.

Background

On June 26, 2026, Arbitrator Gayle

Eskridge (the “Arbitrator”) from the American Arbitration Association (“AAA”)

rendered an award requiring Respondent Nicole Forman (“Respondent”) to pay \$50,000.00 plus interest to Petitioner Chartwell Escrow, Inc. (“Petitioner”).

On August 17, 2026, Petitioner filed

the instant Petition to Confirm Arbitration Award (the “Petition”).

To date, no Opposition has been filed.

II.

Legal

Standard

“Regardless of the particular relief granted, any arbitrator’s award is enforceable only when confirmed as a judgment of the superior court.” (O’Hare v. Municipal Resource Consultants, (2003) 107 Cal.App.4th 267, 278.) “Once a petition to confirm an award is filed, the superior court must select one of only four courses of action: it may confirm the award, correct and confirm it, vacate it, or dismiss the petition.” (EHM Productions, Inc. v. Starline Tours of Hollywood, Inc., (2018) 21 Cal.App.5th 1058, 1063.) “It is well settled that the scope of judicial review of arbitration awards is extremely narrow.” (California Faculty Assn. v. Superior Court, (1998) 63 Cal.App.4th 935, 943.)

“Neither the trial court, nor the appellate court, may ‘review the merits of the dispute, the sufficiency of the evidence, or the arbitrator’s reasoning, nor may we correct or review an award because of an arbitrator’s legal or factual error, even if it appears on the award’s face.’” (EHM Productions, supra, 21 Cal.App.5th at pp. 1063-64.)

III.

Discussion

A. Filing Requirements (Code Civ. Proc., § 1285.4)

Code of Civil Procedure section 1285.4 states:

A petition under this chapter shall:

(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

(b) Set forth the names of the arbitrators.

(c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

(Code Civ. Proc., § 1285.4.)

Here,

Petitioner states that the parties entered into a written agreement to arbitrate on or about August 17, 2022. (Pet., ¶ 2, Exh. A, pp. 3-5.) The dispute subject to arbitration pertains to Petitioner's employment of Respondent. (Pet., ¶¶ 1-3.)

The arbitration agreement states that any disputes related to the parties' employment agreement or otherwise shall be settled by arbitration conducted by the AAA. (Pet., ¶ 2, Exh. A, pp. 3-5.) The Petition also sets forth the name of the Arbitrator and attaches a copy of the final arbitration award. (Pet., ¶¶ 4, Exh. G.)

Thus,

Petitioner has satisfied the requirements of Code of Civil Procedure section 1285.4.

B. Service of the Petition, and

Notice of Hearing (Code Civ. Proc., § 1290.4)

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Code of Civil Procedure section 1290.4 states, in pertinent part:

(a) "A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action."

Here, the written arbitration agreement does not provide for the manner of service for the Petition, and

Respondent has not previously appeared in the proceeding. Accordingly, Petitioner was mandated to serve the Petition on Respondent in the same manner as service of process. Service of a summons may be accomplished by personal service, by substitute service, by mail with acknowledgment of receipt, or by publication. (Code Civ. Proc., §§ 415.10, et seq.)

However, Petitioner provides proof of service demonstrating the Petition and Notice of Hearing were served by mail and electronic mail. (Pet., Proof of Service; Notice of Hearing, Proof of Service.)

Thus, the service requirements of Code of Civil Procedure section 1290.4 are not satisfied.

The unopposed Petition is CONTINUED to allow Petitioner an opportunity to address the deficiencies noted herein.

IV.

Conclusion

& Order

For the foregoing reasons, Petitioner Chartwell Escrow, Inc.'s unopposed Petition to Confirm Arbitration Award is CONTINUED to Monday, October 19, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

Moving party is ordered to give notice.